

STATE OF NEW YORK

347--A

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN, REYES, RIVERA, SAYEGH, SIMON, DeSTEFANO, BRABENEC -- read once and referred to the Committee on Election Law -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the election law, in relation to empowering the commissioner of a board of elections to order certain audits upon a finding of discrepancies

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "election
2 commissioner authorization act of New York (ECAA)".

3 § 2. Subdivision 4 of section 9-211 of the election law, as amended by
4 chapter 763 of the laws of 2021, is amended to read as follows:

5 4. The state board of elections shall, in accordance with subdivision
6 four of section 3-100 of this chapter, promulgate regulations establish-
7 ing a uniform statewide standard to be used by boards of elections to
8 determine when a discrepancy between the audit tallies and the voting
9 machine or system tallies shall require a further voter verifiable
10 record audit of additional voting machines or systems or a complete
11 audit of all machines or systems within the jurisdiction of a board of
12 elections. Any commissioner of a board of elections shall be empowered
13 to order that any such audit shall be conducted whenever any such
14 discrepancy exists and shall also be empowered to order an audit of a
15 particular contest.

16 § 3. This act shall take effect immediately.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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